

25STCV16000 25STCV16000

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-02

Motion: DEFENDANT LOS ANGELES COUNTY OFFICE OF EDUCATION ERRONEOUSLY SUED AS COUNTY OF LOS ANGELES' DEMURRER TO FIRST AMENDED COMPLAINT

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Case Number: 25STCV16000 Hearing Date: September 2, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

GLORIA OKUNNA, an individual,

Plaintiff,

vs.

LOS ANGELES COUNTY OFFICE OF EDUCATION, an entity

(wrongfully sued as COUNTY OF LOS ANGELES) KAZRI FAZILET, an individual;

RUBEN CARRANZA, an individual; THOMAS LEVERON, an individual; TEENA

MEGERDICHIAN, an individual; DEBRA DUARDO, an individual; and JANICE PHELPS,

an individual and DOES 1 through 20, inclusive,

Defendants.

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CASE

NO.: 25STCV16000

[TENTATIVE] ORDER RE: DEFENDANT

LOS ANGELES COUNTY OFFICE OF EDUCATION ERRONEOUSLY SUED AS COUNTY OF LOS
ANGELES' DEMURRER TO FIRST AMENDED COMPLAINT

Dept. 733

8:30 a.m.

September 2, 2026

I.

INTRODUCTION

This is FEHA

discrimination and harassment action,

On June 2, 2025,

Plaintiff Gloria Okunna ("Plaintiff") initiated this action.

On March 16, 2026,

Plaintiff filed a first amended complaint ("FAC") against Defendants County of
Los Angeles, Kasri Fazilet, Ruben Carranza, Leveron Thomas, Teena Megerdichian,
Debra Duardo and Janice Phelps ("Defendants"), alleging causes of action for

(1) Wrongful Termination in Violation of Public Policy, (2) Failure to Prevent Discrimination in Violation of FEHA, (3) Discrimination in Violation of FEHA, (4) Harassment in Violation of FEHA, (5) Retaliation in Violation of Government Code § 12940, (6) Violation of the Family Medical Leave Act, (7) Failure to Accommodate, (8) Failure to Engage in Good Faith Interactive Process, and (9) Negligent Supervision.

On

April 17, 2026, Los Angeles County Office of Education, erroneously sued as County of Los Angeles ("LACOE"), filed the instant demurrer.

On

August 25, 2026, Plaintiff filed an opposition.

On

August 26, 2026, LACOE filed a reply.

II.

LEGAL STANDARD

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.)

When a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.)

III.

DISCUSSION

LACOE demurs to

all causes of action alleged in the FAC.

a. Failure

to Exhaust Administrative Remedies

LACOE

demurs to the complaint on the basis the Plaintiff has failed to exhaust administrative remedies before pursuing her claims under FEHA. LACOE specifically argues that Plaintiff has not sufficiently demonstrated that she properly exhausted her administrative remedies with California's Civil Rights Department.

The doctrine of exhaustion of

administrative remedies requires Plaintiff "to exhaust all available administrative remedies and obtain a final administrative decision as a condition precedent for judicial review." (*Muskan Food & Fuel, Inc. v. City of Fresno* (2021) 69 Cal.App.5th 372, 383.) "Under this rule, an administrative remedy is exhausted only upon termination of all available, nonduplicative administrative review procedures." (*Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd.* (2005) 35 Cal.4th 1072, 1080.) When "an applicable ordinance, regulation or statute provides an adequate administrative remedy, a party must exhaust that remedy before seeking judicial relief." (*Muskan Food & Fuel, Inc. v. City of Fresno*, *supra*, 69 Cal.App.5th at 383.) "In the context of administrative proceedings, a controversy is not ripe for adjudication until the administrative process is completed and the agency makes a final decision that results in a direct and immediate impact on the parties. (Citation.)" (*Tejon*, *supra*, Cal.App.4th 149 at p. 156.)

"A demurrer may properly be sustained

based on the failure to adequately plead exhaustion of administrative remedies.

(Citation.) In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. (Citation.)" (*Ibid.*)

As for Defendant's argument that Plaintiff failed to exhaust

administrative remedies, employees, like Plaintiff, who wish to sue under FEHA

“must exhaust the administrative remedy that statute provides. They do so by filing a complaint with the Department of Fair Employment and Housing. Filing this administrative complaint is a mandatory prerequisite to suing in court.” (Kuigoua v. Dep’t of Veteran Affs. (2024) 101 Cal.App.5th 499, 507; Rojo v. Kliger (1990) 52 Cal.3d 65, 83 [“exhaustion of the FEHA administrative remedy is a precondition to bringing a civil suit on a statutory cause of action” (italics omitted)].).) “Once the agency receives this complaint, it investigates the alleged unlawful practice and decides whether it can resolve the matter by conference, conciliation, and persuasion. If these measures fail, the agency may issue an accusation. If the agency decides against issuing an accusation, it issues a right-to-sue letter to the aggrieved person.” (Kuigoua, supra, 101 Cal.App.5th at p. 507.)

Here, Plaintiff has attached to the FAC the right-to-sue letter she received from the Civil Rights Department on November 7, 2024. (FAC, Ex. 1.) Firstly, in determining whether Plaintiff exhausted the administrative remedies under FEHA, the Court observes “that, as a practical matter, there was no administrative process to exhaust, because [Plaintiff] requested and received an immediate right-to-sue notice in this case pursuant to California Code of Regulations, title 2, section 10005 on the same day that [h]e filed [his] DFEH Complaint.” (Clark v. Superior Ct. (2021) 62 Cal.App.5th 289, 305; Cf. Rickards v. United Parcel Service, Inc. (2012) 206 Cal.App.4th 1523, 1529 [noting that DFEH has made clear that “requests for an immediate right-to-sue letter are accepted from complainants who have decided to go directly to court without an investigation by DFEH”].) Here, Plaintiff received the immediate right-to-sue letter on April 18, 2025, the same date upon which it was filed. (See FAC, Ex. 1.)

However, LACOE argues that Plaintiff did not properly exhaust required administrative remedies because the CRD complaint attached to the FAC does not list LACOE, but rather lists another government entity – the County of Los Angeles, with the address “9300 Imperial Highway Downey, CA 90242-2890.” (FAC, Ex. 1.)

The Court in Alexander v. Community Hospital of Long Beach (2020) 46 Cal.App.5th 238 addressed this issue and stated:

“[T]he DFEH, for one, had no notice that plaintiffs intended to accuse [defendant], and thus had no opportunity to contact [defendant], investigate its involvement in the alleged unlawful practice, or seek to resolve the matter by conference, conciliation, and persuasion. Further, even though [defendant] may have known ... that plaintiffs could have named it in their administrative complaint, [defendant] was entitled to rely on their failure to do so as evidence that they did not intend to pursue a civil complaint against it, at least not until they had filed new administrative complaints.”

(Id. at pp. 251-252.)

But, the Court in *Martin v. Fisher* (1992) 11 Cal.App.4th 118 concluded that a plaintiff who failed to name a defendant “as a charged party [in the plaintiff’s DFEH complaint] or to obtain a right-to-sue letter naming him,” could nevertheless maintain a FEHA action against that defendant because plaintiff had named the defendant “in the body of her charge of discrimination with [CRD].” (Id. at p. 119; see also *Cole v. Antelope Valley Union High School Dist.* (1996) 47 Cal.App.4th 1505, 1514 [“To allow a complainant to sue individuals in a state court action on a FEHA cause of action without having brought them within the scope of the comprehensive administrative process by naming them as perpetrators of discrimination at the outset would undermine the purposes of the fair employment statute.”].)

While Plaintiff did fail to expressly name LACOE as a respondent in her administrative complaint or expressly name LACOE in the body of the administrative complaint, this alone is not wholly dispositive. (See *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 268 [“what is submitted to the DFEH must not only be construed liberally in favor of plaintiff, it must be construed in light of what might be uncovered by a reasonable investigation”].) The administrative exhaustion requirement is satisfied if FEHA claims in a judicial complaint are “ ‘like and reasonably related to’ ” those in the CRD complaint (*Wills v. Superior Court* (2011) 195 Cal.App.4th 143, 154) or “likely to be uncovered in the course of a DFEH investigation.” (*Okoli v. Lockheed Technical Operations Co.* (1995) 36 Cal.App.4th 1607, 1617.)

The Court in *Clark v. Superior Ct.* (2021) 62 Cal.App.5th 289 is persuasive. There, the Court found that the plaintiff’s DFEH complaint “clearly

and unmistakably identified ALSC as an intended respondent, even though it did not use ALSC's legal name." (Id. at p. 305.) The Clark Court reasoned that "reasonable person could think that [the plaintiff] intended to identify an entity other than ALSC as a respondent, since the body of [the plaintiff's] DFEH Complaint named her managers, supervisors, coworkers, job title, and period of employment at ALSC. Thus, any administrative investigation into [the plaintiff's] DFEH Complaint would have certainly identified ALSC as an intended respondent[.]" (Id. at pp. 305-306.)

Like in Clark, here, Plaintiff also named Leveron Thomas, Kazri Fazilet, Teena Megerdichian, Debra Duardo, Janice Phelps and Ruben Carranza as respondents, who are other alleged employees with LACOE. (FAC, Ex. 1.) Thus, any administrative investigation in the CRD complaint would have identified LACOE as the intended respondent. (Clark, *supra*, 62 Cal.App.5th at p. 307 ["as long as the DFEH complaint identifies the complainant's employer as having discriminated against complainant, we see no basis for precluding the complainant from bringing a lawsuit against that employer even if the employer is not referred to by its proper legal name in the DFEH complaint."].)

Similarly, in *Thompson v. George DeLallo Co.* (E.D. Cal. Jan. 16, 2013) No. CIV. S-12-1058 LKK, 2013 WL 211204, the plaintiff identified "GEORGE DELLALO, CO., INC. AKA EHMANN OLIVE, CO." in his complaint with DFEH. (Id. at *1.) The plaintiff then filed a judicial complaint against this defendant. (Ibid.) After further investigation, the plaintiff determined that correct name of the defendant should have been "DeLallo Italian Foods, Inc. dba Ehmann Olive Co." (Id. at *2.) The court, in applying California law, still found that the plaintiff's charge with DFEH "properly identifies the fictitious business name of his employer and was mailed to the facility at which he was employed." (Id. at *9.) "This is sufficient to have put DeLallo Italian Foods on notice of plaintiff's allegations." (Ibid.)

Additionally, while LACOE contends that the CRD complaint listed June 27, 2024 as the date of violation while the alleged misconduct in the FAC began to occur after June 16, 2023 (compl., ¶ 24), the Court finds that a reasonable investigation would uncover this misconduct. (Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 268 ["what is submitted to the DFEH must not only be construed liberally in favor of plaintiff, it must be construed in light of what might be uncovered by a

reasonable investigation”]; *Kuigoua*, supra, 101 Cal.App.5th at p. 508 [“If an investigation of what was charged in the administrative complaint would necessarily uncover other incidents that were not charged, plaintiffs can include the latter incidents in their court action.”]; *Okoli v. Lockheed Tech. Operations Co.* (1995) 36 Cal.App.4th 1607, 1617 [“the unlawful retaliation, which occurred after the filing of the DFEH charge, would not reasonably have been uncovered in an investigation of the charges that were made”].)

The Court finds that Plaintiff sufficiently complied with her administrative remedies.

b. Government Claims Act

“The Government Claims Act (§ 810 et seq.) ‘establishes certain conditions precedent to the filing of a lawsuit against a public entity. As relevant here, a plaintiff must timely file a claim for money or damages with the public entity. (§ 911.2.)’ [Citation.] ‘[T]he claims presentation requirement applies to all forms of monetary demands, regardless of the theory of the action The failure to timely present a claim for money or damages to a public entity bars the plaintiff from bringing suit against that entity.’ [Citation.] ‘The policy underlying the claims presentation requirements is to afford prompt notice to public entities. This permits early investigation and evaluation of the claim and informed fiscal planning in light of prospective liabilities.’ ” (*California Restaurant Management Systems v. City of San Diego* (2011) 195 Cal.App.4th 1581, 1591.) “ ‘Only after the public entity’s board has acted upon or is deemed to have rejected the claim may the injured person bring a lawsuit alleging a cause of action in tort against the public entity.’ ” (*Ibid.*)

However, “actions seeking redress for employment discrimination pursuant to the California Fair Employment and Housing Act (FEHA) (Gov.Code, § 12900 et seq.) are not subject to the claim-presentation requirements of the Tort Claims Act (Gov.Code, § 810 et seq.).” (*Snipes v. City of Bakersfield* (1983) 145 Cal.App.3d 861, 863; *id.* at p. 865 [“the purposes and procedures of the FEHA demonstrate a legislative intent that actions against governmental entities brought under the FEHA are to be excepted from the general requirements of the Tort Claims Act.”].) The CFRA is contained within the FEHA statutory scheme. (*Faust v. California Portland Cement Co.* (2007) 150

Cal.App.4th 864, 878 [“The CFRA, which is contained within the FEHA (§ 12900 et seq.), ‘is intended to give employees an opportunity to take leave from work for certain personal or family medical reasons without jeopardizing job security.’”].)

Thus, Plaintiff’s only non-FEHA claims subject to the claims presentation requirement of the Government Claims Act is Plaintiff’s causes of action for Wrongful Termination, Violation of the Family Medical Leave Act, and Negligent Supervision.

Here, Plaintiff alleges that she “complied with the Notice of Claim requirement by serving Notices of Claim on the Los Angeles County of Education and all the individual Defendants on September 30, 2024 and again on December 12, 2024. The copies of Plaintiff’s Notices of Claim were served at Defendant’s address at 9300 Imperial Highway, Downey, CA 90242. Over 45 days have elapsed since Plaintiff filed her notice of claim and Plaintiff has not received a response from any of the Defendants.” (FAC ¶ 18.)

LACOE argues that “LACOE never received government claims for LACOE from the Plaintiff prior to filing her lawsuit, and no government claim against LACOE is attached to the lawsuit.” (Motion, p. 12.) However, the Court is to assume the truth of the allegations on demurrer. (*Malear v. State of California* (2023) 89 Cal.App.5th 213, 220 [“Plaintiffs filing a complaint against a public entity ‘must allege facts demonstrating or excusing compliance with the claim presentation requirement.’”].)

Nonetheless, Plaintiff’s common-law tort claims for Wrongful Termination and Negligent Supervision are barred, as they are alleged against a public entity. (*de Villers v. County of San Diego* (2007) 156 Cal.App.4th 238, 255-256 [“A direct claim against a governmental entity asserting negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injured party, may not be maintained.”]; *Cleveland v. Taft Union High School Dist.* (2022) 76 Cal.App.5th 776, 797–798 [“An important feature of the [Government Claims] Act is that public entity tort liability is exclusively statutory”]; see also Gov. Code, § 815, subd. (a) [“Except as otherwise provided by statute: [¶] ... A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public

employee or any other person.”].)

The demurrer to
the first and ninth causes of action is sustained.

c.

Discrimination

A plaintiff alleging discrimination must allege “that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (*Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 355.)

“While a complainant need not prove that racial animus was the sole motivation behind the challenged action, he must prove by a preponderance of the evidence that there was a ‘causal connection’ between the employee’s protected status and the adverse employment decision.” (*Mixon v. Fair Emp. & Hous. Com.* (1987) 192 Cal.App.3d 1306, 1319.)

Here,

Plaintiff alleges that on June 16, 2023, as Plaintiff walked to class, Plaintiff was attacked by a dog on Defendant’s premises. (FAC ¶ 24.) “As a result of the dog attack, Plaintiff suffered severe injuries to her back, neck and shoulders and was placed on disability.” (Id. ¶ 25.) “Once Defendants became aware that Plaintiff had filed for Workers Compensation, the individual and entity Defendants began a campaign of harassment and persecution against Plaintiff.” (Id. ¶ 26.) “The Defendants instructed Plaintiff to contact a Qualified Medical Examiner (QME) before returning to work. Plaintiff saw the QME. The QME cleared Plaintiff for work, yet the Defendants still terminated Plaintiff.” (Id. ¶ 28.) “Even though Defendant terminated Plaintiff on June 27, 2024, a review of Defendant’s own records shows that Defendant had already terminated Plaintiff at the time Defendant instructed Plaintiff to return to work.” (Id. ¶ 31.) “Defendants acted in this manner because they wanted to discriminate against Plaintiff because of her race which is Black,” “because of Plaintiff’s national origin which is Nigerian,” and because of Plaintiff’s disability.” (Id. ¶¶ 31-33.)

Such allegations are simply conclusory. Plaintiff

does not plead any factual allegations as to who engaged in the discriminatory conduct or allegations that would support causal link as to how any of the alleged misconduct, and ultimately alleged Plaintiff's termination, was done because of Plaintiff's protected class.

The demurrer to the third cause of action is sustained.

d.

Harassment

FEHA forbids employers from harassing employees because of "race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation," and other protected classifications. (Gov. Code, § 12940, subd. (j)(1).)

To establish a prima facie case of harassment, a plaintiff must show that (1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on her protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment. (Thompson v. City of Monrovia (2010) 186 Cal.App.4th 860, 876 (Thompson); see also Galvan v. Dameron Hospital Assn. (2019) 37 Cal.App.5th 549, 563.)

Generally, "isolated instances ... do not constitute a hostile work environment [cognizable as harassment]." (Fisher v. San Pedro Peninsula Hosp., supra, 214 Cal.App.3d at 611.) "The working environment must be evaluated in light of the totality of the circumstances: '[W]hether an environment is 'hostile' or 'abusive' can be determined only by looking at all the circumstances. These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance.'" (Miller v. Department of Corrections (2005) 36 Cal.4th 446, 462, quoting Harris v. Forklift Systems, Inc. (1993) 510 U.S. 17, 21.)

Here,

as stated above, Plaintiff alleges that “[o]nce Defendants became aware that Plaintiff had filed for Workers Compensation, the individual and entity Defendants began a campaign of harassment and persecution against Plaintiff.” (FAC ¶ 26.) Also, “[a]fter plaintiff’s complaint to the Human Resources Department, the individual defendants supported in their actions by the entity Defendants began a campaign of harassment and retaliation against plaintiff. Said retaliation included continuously writing plaintiff up for no reason all to set plaintiff up for termination.” (Id. ¶ 38.)

Such allegations are simply conclusory. Plaintiff does not plead any factual allegations as to who engaged in the harassing conduct or allegations or what exactly the harassing conduct is. Plaintiff also has not sufficiently alleged any causal connection to her protected class.

The demurrer to the fourth cause of action is sustained.

e. Failure to Prevent

The elements of a cause of action for failure to prevent harassment or retaliation are: (1) actionable discrimination or harassment by employees or nonemployees; (2) defendant’s legal duty of care toward plaintiff (i.e., defendant is the plaintiff’s employer); (3) breach of that duty (i.e., failure to take all reasonable steps necessary to prevent discrimination and harassment from occurring); (4) legal causation; and (5) damages to plaintiff. (Trujillo v. North County Transit District (1998) 63 Cal.App.4th 280, 287, 289; Bradley v. Department of Corrections & Rehabilitation (2008) 158 Cal.App.4th 1612, 1630; Gov. Code, § 12940.)

If “a plaintiff cannot establish a claim for discrimination, the employer as a matter of law cannot be held responsible for failing to prevent same[.]” (Featherstone v. S. California Permanente Med. Grp. (2017) 10 Cal.App.5th 1150, 1166.) Accordingly, because Plaintiff has failed to allege sufficient facts to establish her causes of action for discrimination and harassment, Plaintiff’s claim for Failure to Prevent Discrimination and Harassment necessarily fails.

The demurrer to the second cause of action is sustained.

f.

FEHA Retaliation

"To establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (Meeks v. Autozone, Inc. (2018) 24 Cal.App.5th 855, 878-879, brackets omitted.)

"[A]n employee's conduct may constitute protected activity ... not only when the employee opposes conduct that ultimately is determined to be unlawfully discriminatory under the FEHA, but also when the employee opposes conduct that the employee reasonably and in good faith believes to be discriminatory, whether or not the challenged conduct is ultimately found to violate the FEHA.' [Citation]." (Dinslage v. City & Cnty. of San Francisco (2016) 5 Cal.App.5th 368, 381.) "[A] mistake of either fact or law may establish an employee's good faith but mistaken belief that he or she is opposing conduct prohibited by FEHA.' [Citation]." (Ibid.) "In such cases, the question is the reasonableness of the employee's belief that he was opposing a practice prohibited by the FEHA." (Ibid.)

Here, Plaintiff alleges "[a]fter Plaintiff's Complaint to the Human Resources Department, the individual Defendants supported in their actions by the entity Defendants began a campaign of harassment and retaliation against plaintiff Said retaliation included continuously writing plaintiff up for no reason at all to set plaintiff up for termination." (FAC ¶ 38.) She also alleges that "On several occasions Plaintiff complained to the Defendants that her classrooms were too cold because there was no heat, the Defendants ignored Plaintiff and insisted that Plaintiff continued to teach" (Id. ¶ 89). " ... rather than fix the heat, the Defendants insisted, despite the obvious dangers that Plaintiff proceed to teach ... "the students in their dormitory. (Id. ¶ 90.) Plaintiff further alleges that "This request was only made to two teachers both of whom were female and of African descent. Plaintiff insisted that these decisions were discriminatory against Black women and complained." (Ibid.) Plaintiff then alleges that "Defendants terminated Plaintiff's employment because of Plaintiff's valid complaints."

The

Court agrees with LACOE that LACOE cannot discern the basis of this cause of action or what protected activity is being asserted. Further, Plaintiff fails to allege a causal connection between any potential protected activity and her subsequent termination.

The
demurrer to the fifth cause of action is sustained.

g. FMLA Violation

“The FMLA provides
job security and leave entitlements for employees who need to take absences
from work for personal medical reasons, to care for their newborn babies, or to
care for family members with serious illnesses.” (Xin Liu v. Amway Corp. (9th Cir. 2003) 347 F.3d 1125, 1132.)

The
Court finds this cause of action uncertain as it does not provide any notice to
LACOE as to which statutory provision of the FMLA Plaintiff is asserting. “A demurrer for uncertainty will be sustained
only where the complaint is so bad that defendant cannot reasonably
respond—i.e., he or she cannot reasonably determine what issues must be
admitted or denied, or what counts or claims are directed against him or her.”
(Weil & Brown, Civil Procedure Before Trial (The Rutter Group) § 7:85
(emphasis in original).)

The
demurrer to the sixth cause of action is sustained.

h.

Failure to Provide

Reasonable Accommodations and Failure to Participate in the Interactive Process

Under Government

Code section 12940(m), an employer has a duty to make “reasonable accommodation
for the known physical or mental disability of an . . . employee.” (Gov. Code §
12940(m).) To prevail on this cause of action, a plaintiff must prove that
“(1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is
a qualified individual (i.e., he or she can perform the essential functions of
the position); and (3) the employer failed to reasonably accommodate the
plaintiff's disability.[Citation.]” (Hernandez v. Rancho
Santiago Cmty. College Dist. (2018) 22 Cal.App.5th 1187,

1193-1194.)

“The

‘interactive process’ required by the FEHA is an informal process with the employee or the employee’s representative, to attempt to identify a reasonable accommodation that will enable the employee to perform the job effectively. [Citation.] Ritualized discussions are not necessarily required.” (Scotch v. Art Institute of California (2009) 173 Cal.App.4th 986, 1013.) “The employee must initiate the process unless the disability and resulting limitations are obvious.” (Ibid.) However, “[e]ach party must participate in good faith, undertake reasonable efforts to communicate its concerns, and make available to the other information which is available, or more accessible, to one party. Liability hinges on the objective circumstances surrounding the parties’ breakdown in communication, and responsibility for the breakdown lies with the party who fails to participate in good faith.” (Id. at p. 1014.)

It is well established that “the responsibility to initiate the interactive process of fashioning an appropriate accommodation lies primarily with the employee.” (Spitzer v. The Good Guys, Inc. (2000) 80 Cal.App.4th 1376, 1385.) “ ‘Where the disability, resulting limitations, and necessary reasonable accommodations, are not open, obvious, and apparent to the employer,’ ” ... the employee bears the burden “ ‘to specifically identify the disability and resulting limitations, and to suggest the reasonable accommodations.’ ” (Scotch, supra, 173 Cal.App.4th at p. 1013.) Additionally, “[a]n employer does not have to accept an employee’s subjective belief that he is disabled and may rely on medical information in that respect.” (Arteaga, supra, 163 Cal.App.4th at p. 347 [finding the employee’s description of pain and numbness were subjective and the employer was entitled to rely on the fact that the physician returned the employee to work without any restrictions].)

“While a claim of failure to accommodate is independent of a cause of action for failure to engage in an interactive dialogue, each necessarily implicates the other.” (Moore v. Regents of Univ. of California (2016) 248 Cal. App. 4th 216, 242.)

Here,

Plaintiff alleges that “[t]he Defendant did not accommodate Plaintiff’s disability but insisted that Plaintiff return to work,” “Plaintiff was given

restrictions by a medical professional” and “Defendants were aware of Plaintiff’s restrictions but failed to engage in a timely, good faith, interactive process with Plaintiff to determine effective reasonable accommodations for Plaintiff’s known disability.” (FAC ¶¶ 27, 39, 110, 116.) However, Plaintiff also alleges that Defendants “instructed Plaintiff to contact a Qualified Medical Examiner (QME) before returning to work. Plaintiff saw the QME. The QME cleared Plaintiff for work, yet the Defendants still terminated Plaintiff.” (Id. ¶ 28.)

Plaintiff has solely alleged conclusory and contradicting allegations. According to Plaintiff’s allegations, the QME had cleared her to return to work, making it unclear as to whether she had any restrictions. Furthermore, LACOE is unable to determine which accommodations Plaintiff is alleged to have requested and when.

The demurrer to the seventh and eighth causes of action is sustained.

IV.

CONCLUSION

Based on the foregoing, LACOE’s demurrer is SUSTAINED in its entirety with thirty (30)

days leave to amend.

Dated this 2nd
day of September 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court